

19 April 2023

Juror off sick

Submissions regarding the evidence of Eirian Powell

CONTENTS

Housekeeping

Submissions by MR MYERS

Submissions by MR JOHNSON

Submissions in reply by MR MYERS

Wednesday, 19 April 2023

(10.30 am)

(In the absence of the jury)

Housekeeping

MR JUSTICE GOSS: Mr Johnson, Mr Myers, you will have been told that, regrettably, a juror is absent through illness. The information is that they hope that they will be fit tomorrow, but not well enough to be here today. As you know, the jury have been very conscientious and it's only those who really have not been able to attend who have said that they can't come, because they understand the importance of this and the fact that when they aren't here the court cannot sit.

They know that.

So there is no option but not to sit with the jury today.

MR JOHNSON: Yes.

MR JUSTICE GOSS: I don't see any need for the jury to be brought into court to be told that they're not sitting today, that can be done informally through the usher and they can be told that an enquiry will be made of the absent juror this afternoon to see if they feel any better and whether they anticipate they'll be here tomorrow. But the indications were that they very much hoped to be here tomorrow and I'm sure will strive to be here tomorrow if at all possible --

MR JOHNSON: Yes, thank you.

MR JUSTICE GOSS: -- which is the only remaining working day of the week because on Friday we are not sitting on the case.

MR JOHNSON: It is. Tomorrow is important because Professor Arthurs, potentially, is scheduled to be here.

MR JUSTICE GOSS: Lined up. Well, that is important.

Thank you.

Mr Myers, is there anything you wish to say?

MR MYERS: Not at this stage.

MR JUSTICE GOSS: Just in relation to this discrete issue.

Thank you very much.

Usher, would you be kind enough to thank the jury very much. Explain to them -- they'll already have appreciated that they're one short. Just say the difficulty is that that juror is not well and hopes to be fit tomorrow, and the usual procedure of phoning in at around 4 o'clock this afternoon or whether the jury officer rings them, whatever the procedure is. The normal procedure will be followed, but otherwise to be prepared to be here tomorrow but not, obviously, on Friday, which I remind them is a non-sitting day.

Tomorrow we'll address non-sitting days thereafter.

Thank you very much indeed.

Mr Myers, thank you for the information about the medical appointment. It's a difficult situation, this.

I don't know whether it would be possible for the day of the visit by the clinician in question to be changed to the 26th, which is a non-sitting day.

MR MYERS: We've made enquiries about that and we're told at the moment there's one day when the clinician attends and that isn't the 26th, which is the problem. Our solution to that is to try to find another clinician to attend, with the assistance of Ms Letby's family, it has to be said, on a day when we are already not sitting.

MR JUSTICE GOSS: Yes. And for the prison, in other words, to be accommodated.

MR MYERS: For the prison to be accommodating. And one of the reasons why I have brought it to your Lordship's attention was, first of all, because your Lordship should know but also because if we were to reach a point where any assistance is required as to the importance of accommodating that, if we felt it

necessary, we would turn to your Lordship for such assistance as the court could give to convey that to the prison if there's any issue with it. So we're trying to take steps to avoid this being a problem in terms of those sitting days that we have. We don't want to lose any days.

MR JUSTICE GOSS: Because every day is now clearly precious.

MR MYERS: It is.

MR JUSTICE GOSS: May I address the senior officer in the dock or whoever is prepared to stand in as the senior officer? Do you know what I'm talking about? This eye -- DOCK OFFICER: (Inaudible) an optician's appointment (inaudible: no microphone).

MR JUSTICE GOSS: The second line, therefore, is will it be possible to accommodate a different optician, do you know, to come in on, say, the 26th if that can be arranged?

DOCK OFFICER: I can definitely feed that back (inaudible: no microphone).

MR JUSTICE GOSS: Would you do that because we're not going to be sitting in court very much today? We'll probably be another, I don't know, another 10 minutes unless I'm told otherwise. But in any event, if that could be accommodated, that would be of great assistance.

DOCK OFFICER: (Inaudible: no microphone).

MR JUSTICE GOSS: That would be excellent, thank you. I'm sure that -- the senior staff at the prison and yourselves have been very helpful, if I may say so, in relation to accommodating everything insofar as it's possible. You'll appreciate that every day is precious, every day of the trial is precious, therefore we want to preserve days if at all possible because we're losing necessarily a lot of days.

Thank you very much. We'll leave that with you, so we'll put that to one side for the moment.

MR MYERS: Thank you, my Lord.

MR JUSTICE GOSS: Thank you for bringing that to my attention.

MR MYERS: We're taking whatever steps we can to avoid losing a day that we don't need to lose if possible.

MR JUSTICE GOSS: Exactly. And then coming back to non-sitting days as we have them at the moment. I've omitted, when I

distributed the last written list, 3 May, which I'm afraid is another day when the court cannot sit. Wednesday, 3 May.

So we therefore have, as matters stand, the following days in May when we are not due to sit: Monday, 1 May, a public holiday; Wednesday the 3rd; Monday the 8th, public holiday; Tuesday the 9th; Monday the 22nd; Tuesday the 23rd; Friday the 26th, that is to accommodate a commitment of a juror. I've enquired of that juror whether it would be preferable for that juror to have the whole week off, but I'm told, no, it wouldn't. So the juror only requires those 3 days off.

So we can sit Wednesday the 24th and Thursday the 25th.

Then we have our third public holiday in May, Monday the 29th.

MR MYERS: My Lord, yes.

MR JUSTICE GOSS: I'm not going to seek to arrive at a decision now as to what we're going to do in relation to other non-sitting days, but those are the dates when the court cannot sit that are known dates.

MR MYERS: With matters that follow on from that, so far as this week is concerned, if it's possible we would ask that even if the court isn't sitting, that on Friday the defendant be produced. That's Friday this week.

MR JUSTICE GOSS: Yes.

MR MYERS: I just make that observation now.

MR JUSTICE GOSS: Yes. So the time can be used, yes.

MR MYERS: So the time can be used with the defendant on Friday and that should be sufficient at this stage.

MR JUSTICE GOSS: Can I just say in relation to that, then we can close that off, yes. The defendant will be produced at court on Friday. The court will not be sitting that day because now I have a commitment elsewhere for all of that morning where I'll have to be elsewhere now.

MR MYERS: We are grateful if that arrangement can be made and we'll inform Mr Worthington so we will let the prison know.

There's an issue with the witness Eirian Powell, which we could deal with when it's convenient to your Lordship.

MR JUSTICE GOSS: I did read that. I skim-read it on Monday.

MR MYERS: I can return to that if that assists and if Mr Johnson is ready to deal with that. I think he is from having spoken to him.

Other matters. We obviously have the evidence of Professor Arthurs to give.

So far as other matters before we proceed to the defence case, there is of course the question to be resolved or the issue of arrangements for the defendant giving evidence and things to look at with that.

MR JUSTICE GOSS: Yes.

MR MYERS: Whilst of course not obligated to do so, so far as the defence are concerned and the position at the end of the prosecution case and our position there, aware that we are that the court is arranging, managing matters, there is a matter of law that we would seek to raise with regard to a discrete area of the case, the evidence, and what we say is the quality of that evidence. For a range of reasons it's not something I am able to set out in detail now, but to assist with it, it relates to one area of the expert evidence as it applies to a number of the counts.

I'll see if I can get further than that with my learned friend Mr Johnson to prepare him, so time isn't lost. But the reason I raise it now is because I know your Lordship is considering how matters proceed and the time to be required for various issues, so I'd rather let the court know now rather than stand up out of the blue and suddenly announce that's what's coming next.

MR JUSTICE GOSS: If you can discuss that with Mr Johnson and give an estimate as to how long you anticipate that may occupy.

MR MYERS: Yes.

MR JUSTICE GOSS: Then that can be factored into the timetable.

MR MYERS: I'll endeavour to be as helpful as I can.

Your Lordship will appreciate sometimes there are limits as to quite how far one can go with discussions at that point, but I'll try to be as helpful as I can so we can use the time as well as we can.

MR JUSTICE GOSS: Exactly. Right.

Well, the Eirian Powell issue. I haven't got the material before me at the moment, but I can have that brought to me. It'll be on my desk. I printed it off.

I haven't got my laptop here in court.

MR MYERS: Your Lordship may be assisted with that. It's not a lengthy matter to raise, but I can -- we can deal with it now. It's something we can do usefully now before we cease business.

MR JUSTICE GOSS: Perhaps I could just have a quick word with the usher, please.

(Pause)

Whilst we're waiting for that, as far as the records of interview are concerned, I assume now that these have all been checked.

MR MYERS: Yes, they have, my Lord.

MR ASTBURY: Yes, and we're grateful for the assistance from the defence. There were two pages which hadn't been formatted properly so we (inaudible: no microphone) have been able to amend that and print them out (inaudible: no microphone.)

MR JUSTICE GOSS: Right. There will have to be amendments to the jury's copies of these --

MR ASTBURY: The jury's copies will need two pages removing, two pages inserting.

MR JUSTICE GOSS: That can be done later today, can it?

MR ASTBURY: In the event that they have started to write on them (inaudible: no microphone).

MR JUSTICE GOSS: If everybody is content for that to be done, we'll do it that way. That will probably be easier.

MR MYERS: I see Ms Clancy informs me that it is (overspeaking) my Lord.

MR JUSTICE GOSS: We'll do it that way. So far as the second bundle is concerned -- you indicated there was going to be a second bundle?

MR ASTBURY: Yes. That was provided to the defence at I think about 12.30 yesterday.

MR JUSTICE GOSS: So that should be ready for tomorrow.

We're not going to get to it tomorrow anyway. It'll be next week. So there's no great urgency. Thank you all very much.

Mr Johnson, are there any other matters that need to be brought to my attention in relation to the remaining prosecution evidence?

MR JOHNSON: I don't believe so, thank you.

MR JUSTICE GOSS: Thank you. About how long, insofar as one can estimate, how long will the remaining evidence be likely to take for the prosecution?

MR JOHNSON: Well, Professor Arthurs will be completed within an hour. Eirian Powell, difficult to say before we discuss the issues that that relates to. But I'd be surprised if that takes very long.

One of the issues that -- I don't want to descend into the argument, but one of the issues is relating to her and what consequential effects may follow. That's something we'll have to deal with.

The interviews, 2 to 3 days, I think, is --

MR JUSTICE GOSS: I can obviously make a guesstimate looking at this. About how thick is the second file?

MR ASTBURY: It's about the same.

MR JUSTICE GOSS: About the same, right. Well, I would have thought, realistically, certainly into a third day.

MR JOHNSON: Yes.

MR JUSTICE GOSS: So about a working week, 4 days?

MR JOHNSON: Yes.

(Pause)

MR JUSTICE GOSS: I agree, I can hear what's being said.

You will know, from having sat, it's amazing how much one hears up here.

MR MYERS: I'll have to disclose, I've never sat in that position, my Lord. I've never been put there!

MR JUSTICE GOSS: Right. I have it now, thank you very much.

Submissions by MR MYERS

MR MYERS: My Lord, the matter that arises relates to the evidence of Eirian Powell who was a nursing manager at the Countess of Chester Hospital. On Monday of this week, 17 April, the prosecution indicated to the defence a number of witnesses who they would not be calling as part of the background to the case and in fact, after discussions, most of the issues there can be dealt with very briefly.

The witness Sian Williams is not (inaudible: coughing) who we make any application in regard to. The evidence that related to the officer involved we can deal with in another way and on another occasion I shall inform your Lordship as to what that is so the court understands.

This relates purely to Eirian Powell. Having spoken with the prosecution, and Mr Johnson will enlarge upon this, the position has been clarified in this way so that it becomes not so much a question that they will not call her, that they raise a question as to the ambit of any cross-examination. So that's where we are at this point. Because of course she has been a witness throughout the case, she's been requested at every stage of the care, requested specifically for the purpose of background material --

MR JUSTICE GOSS: Can I just say that as far as I'm concerned, you needn't trouble me about the question of whether she should or should not be called as a prosecution witness. As I was reading it, it struck me that the issue is going to be -- it's the evidence that she may be asked to give that is controversial --

MR MYERS: Yes.

MR JUSTICE GOSS: -- and that's what we need to focus upon.

MR MYERS: We understand that. Your Lordship will have seen the statement that she makes. There are two relating to this part of the case, pages 203 through --

MR JUSTICE GOSS: I'm sorry, I haven't got -- I'll have to trouble the usher again for my laptop, sorry, so I can get it on the digital case system unless someone has a paper copy to hand.

MR MYERS: Only marked, my Lord, which is probably not helpful.

MR JUSTICE GOSS: If I'd known we were going to be dealing with this now, I'd have come fully prepared, but I hadn't anticipated it.

(Pause)

Give me the reference again.

MR MYERS: The principal statement is at pages 203 to 210 and then there's a shorter statement at 211 to 212, which doesn't feature in any of the material that we raise. It's that statement of 203 to page 210.

MR JUSTICE GOSS: Thank you.

(Pause)

I have them, thank you.

MR MYERS: I am grateful, my Lord. Your Lordship will see in that statement Ms Powell covers a variety of issues that in fact have been raised or touched upon in the course of the evidence throughout this case, particularly with the consultants. We have to observe that, we respectfully maintain, these matters are plainly relevant. I'll go through them. But we voice some surprise in having to justify in this way cross-examination that would be embarked upon which comes as no surprise to anybody.

We've requested her with this statement in mind throughout, so although the issue now is not as to whether or not she should be called but the extent of her evidence, it is relevant that this has been important material throughout.

Some of the consultants particularly have given evidence-in-chief, under cross-examination, and on some occasions chosen to volunteer material that this engages with and they've been cross-examined upon that. The type of topics that she deals with, you'll have seen it in the statement, are Ms Letby's performance as a nurse and her duties, and that's over the first couple of pages. Some matters of personal opinion, we recognise, may go beyond what would be properly adduced and we don't go to those, but the way in which she was required to work and what she did and the intensive care work is relevant and we have questions around that to ask.

The progress of concerns by doctors on the unit, which we pick up from about page 4 onwards, is plainly a matter of some relevance given what has both been volunteered by certain of the prosecution witnesses when they have come to give evidence and answers they gave in cross-examination.

She deals with some aspects of the process, much of which we do not need to go to, but some particular features, and I can give an example because this relates precisely to evidence that was dealt with with Dr Brearey on page 4. Just above what on my copy is the lower hole punch, it'll be about two-thirds of the way down your Lordship's page, she talks about the process that Dr

Brearey invited her to undertake with regard to who was present and when and his apparent lack of interest in the doctors or requests to remove doctors from that process, which we asked Dr Brearey about expecting that we would be able to deal with this with Ms Lloyd, and is relevant to what we say is the attitude of some of those who were involved in forming the initial suspicions relating to Ms Letby.

That's just one illustration of more general points that she deals with. But that's plainly, we submit, relevant and has formed part of the evidence up to now and it would be a surprising matter if this witness who had been there to deal with it throughout was now not to do so.

She also deals, as we go further through --

MR JUSTICE GOSS: This is on page 4 of 8?

MR MYERS: Yes.

MR JUSTICE GOSS: The paragraph beginning, "We completed a review of every detail"?

MR MYERS: No, I apologise. Below that:

"Interestingly [it's the one after that] I documented the names of the doctors as well, but Steve removed that column from the report as he didn't want me to include the doctors."

Something Dr Brearey was asked about and, we say, something that is indicative of his attitude. He's been asked questions about that. He's been quizzed about confirmation bias, he said what he said about it. We cross-examined him and made reference specifically to this because it has been here throughout and we anticipated dealing with it with Ms Powell.

Just in fact, as we did with his comments with regard to Nurse Taylor, which your Lordship will find at the foot of page 5 of 8. Dr Brearey has said what he wished to say about that. He was questioned about it in the context of us understanding we would be dealing with this with Ms Powell, something we had expected until Monday of this week. But they are quite particular matters.

She deals with the course of that and then she goes on to deal with the reallocation of Ms Letby from a clinical to a non-clinical role. Your Lordship will find that from about page 6 onwards through to page 7 and 8.

That's important. That's an important part of the case. It bridges the gap between the end of the indictment and the period

in which the grievance process began, which will feature in Ms Letby's evidence -- that's no surprise to anybody -- which itself takes us through to 2017 and the point when the doctors made contact with the police, which again has been dealt with. So this covers territory that's been covered in the case, but with a witness who can give evidence about it and whom we had expected to deal with throughout on these issues.

In the short submission that we provided to your Lordship at paragraph 7, I make reference to two of the messages that appear in what's called the post-indictment schedule, paragraph 7 on page 2. In fact one of them was from Yvonne Griffiths and another one that follows, a related one, is from Eirian Powell and has been included, we anticipate, at the request of the prosecution. It's there. It's something she says about this process. In fact, I can take your Lordship to that, it's at line 263 on the post-indictment schedule. I'm grateful to Mr Murphy if he could assist by putting that up.

This has been put before the jury by the prosecution in which Eirian Powell says:

"Hi all, there are current opportunities for staff to apply for secondments throughout the trust. It has therefore come at an opportune time for us and we were able to facilitate this for Lucy."

I should say that this is dated 9 August 2016:

"Lucy is concerned seconded to the Risk and Patient Safety Office for a period of 3 months. Laura is currently seconded to the haemodialysis unit and will be returning in November 2016. Should anyone have an interest in other areas please discuss this further during your appraisal or come to me directly. Kindest regards, Eirian Powell."

In fact that relates to the period in which Ms Letby had been reallocated to different duties. That plays a significant part in what happens leading up to the grievance process, which we know took place and to which reference is made, including in this schedule. The schedule concludes -- the final entry on the schedule for 7 September at line 275 is the registration of the grievance procedure. It simply says that:

"Registration of grievance procedure."

That plays a significant part in what then follows.

So we do voice surprise at finding ourselves being asked to justify why it is -- not directed to your Lordship, I hasten to add, your Lordship hasn't raised this matter, the prosecution

have, having initially suggested they wouldn't be calling her at all so far as we understood. We do voice some surprise at finding ourselves having to justify why it is that we have to embark -- why it is we are cross-examining matters that have featured in this case, are plainly relevant, are included within prosecution evidence that's been put before this jury.

But for the assistance of your Lordship we have set that out and respectfully observe those aren't matters that are arising for the first time now and are in themselves matters of surprise. They follow logically from lines of questioning that have been pursued with various of the prosecution witnesses to date and pieces of evidence that in some cases have been actively volunteered by those witnesses.

I hasten to add, I anticipate cross-examination of Ms Powell on these matters is unlikely to take longer than 30 minutes. It's not something where we plan to go through the whole history of every matter. It covers in large part the type of material I've identified for your Lordship now with some questions enlarging upon that for the benefit of the defence.

Whether that requires the calling of any other witness, I don't know. But what I do respectfully observe is that none of this, in fact, should come as any surprise to the prosecution. That's the position we are in, my Lord.

MR JUSTICE GOSS: Thank you very much. Mr Johnson.

Submissions by MR JOHNSON

MR JOHNSON: My Lord, the issue of whether or not it's a surprise is irrelevant, we submit. The issue here is that we have a witness who has given evidence and who has been cross-examined.

So far as the prosecution are concerned, we would not propose to adduce any further evidence from this witness --

MR JUSTICE GOSS: Can I just interrupt you there?

I obviously haven't been party to the discussions that have gone on between you as to whether it is said that completes the evidence of that witness and that witness will not be required to be back or not. But Mr Myers gives me the clear impression that it was understood that she would be recalled at some stage by the prosecution during the course of the prosecution case.

Is that right or is that wrong?

MR JOHNSON: Well, the only issue that matters in that context is what Mr Myers' understanding was. I couldn't put my hand on my

heart and confidently say what undertakings or impressions we had given. I simply can't say that.

MR JUSTICE GOSS: All right.

MR JOHNSON: But that doesn't matter because it's the impression that my learned friend has that matters --

MR JUSTICE GOSS: Yes.

MR JOHNSON: -- and only he can speak to that.

MR JUSTICE GOSS: Exactly. And clearly from some of the questions that have been asked, to which he has referred, there were clearly matters that appear in this witness's witness statement that have been touched on in the evidence. Therefore it's not unreasonable to say that he had an expectation that he would have an opportunity to raise these matters in cross-examination.

MR JOHNSON: No, and I'm not seeking in any way to bar him out or to persuade your Lordship to bar this out. What I am saying is that, so far as the prosecution are concerned, we would not propose to adduce any further evidence from the witness, therefore we would not in that sense recall the witness to give further evidence to the jury.

The issue therefore becomes that this is a defence application to have the witness recalled for further cross-examination, which is an application to the court, not the prosecution. And in that sense, the submissions that were made in writing miss the target, we would submit. But it doesn't matter, that doesn't matter.

MR JUSTICE GOSS: Let's forget about names and the precise formalities of what the situation is. Let's work on the premise that the defence understood that Eirian Powell would be giving evidence again and they proposed to cross-examine about certain matters.

MR JOHNSON: Yes.

MR JUSTICE GOSS: Therefore if they are formally seeking leave for her to be recalled, or requesting that she be recalled, so be it. And because she's been a prosecution witness she would be called as a prosecution witness --

MR JOHNSON: Absolutely, yes.

MR JUSTICE GOSS: -- and tendered as a witness.

MR JOHNSON: Absolutely.

MR JUSTICE GOSS: Therefore we're at the situation then, as I see it, as to what extent are the matters, or some of these matters which have not actually directly been specified -- there's a general sense about matters that want to be raised and it's not quite clear how far they will go or to what extent they will be direct evidence from the witness as to what she knows from her personal knowledge --

MR JOHNSON: Exactly.

MR JUSTICE GOSS: -- or whether it is simply what she is saying was a general impression or her perception of an impression or anything like that. I think that's where we enter potentially dangerous waters.

MR JOHNSON: That is the very reason why we have adopted the approach that we have, in effect saying to the defence, well, you have to make an application to recall the witness and you, the defence, have to justify why it is that the witness should be recalled.

MR JUSTICE GOSS: Mr Myers has touched on the grievance procedure and this sort of things. This is an area -- these are all events that post-date the event that give rise to the counts on the indictment. They may have some materiality to what happened at that time.

MR JOHNSON: Yes.

MR JUSTICE GOSS: But for example, the grievance procedure is not a matter that this court should get involved with in detail because that is an internal grievance procedure for the employers.

MR JOHNSON: Yes. It's a collateral issue to which different considerations apply, different standards of proof. It potentially introduces --

MR JUSTICE GOSS: Potentially a whole mass of other material.

MR JOHNSON: Exactly.

MR JUSTICE GOSS: That may or may not be relevant to the issues that the jury have to decide in relation to these particular children.

MR JOHNSON: Precisely.

MR JUSTICE GOSS: The reason I'm articulating this to you, obviously in the hearing of Mr Myers, is because as I see it

there needs to be specific detail as to precisely what it is that the defence wish to put to this witness.

MR JOHNSON: Yes, absolutely.

MR JUSTICE GOSS: Otherwise we're going to be taken by surprise and I'm going to have to say to the jury, "Sorry, can you leave now", and ask Mr Myers where he is going with a particular line of questioning, potentially.

MR JOHNSON: And we potentially then get involved in calling further witnesses of fact in order to rebut the mistaken evidence that Eirian Powell has given.

Can I give you one very good example of a mistake that's in this statement which would necessarily require us to correct. It's at the bottom of page 207, which is page 5 of 8 of the first statement. It picks up on a point that my learned friend has just raised, namely the suggestion that Dr Brearey directed the witness to remove the doctor column, in effect, from the Scott Schedule or whatever one wants to call it.

MR JUSTICE GOSS: The general public won't know what you mean by a Scott Schedule. It's the schedule of clinicians, be they -- well, clinicians and nurses who are on duty at the time of material events.

MR JOHNSON: Yes. So the statement reads as follows:

"Stephen Brearey was only aware of Lucy being the commonality when I informed him. However, there was only a couple of cases' difference between the next member of staff being present."

Well, that just isn't true. The table that I showed the jury during the opening made the point that that simply isn't true. If that was given in evidence by the witness, we'd then get involved in having to question the witness about which incidents was she looking at, which members of staff was she looking at, where is the document that she's talking about, and we would go down a rabbit hole to no positive effect in this trial other than to divert the jury from the issues.

My Lord, that leads us, we respectfully submit, back to basic principles. These basic principles are, we would submit, best set out in Blackstone. I don't know whether your Lordship has a copy of the volume in court. It's part F of Blackstone and it's paragraph F1.11. I can't give you a page number, I'm afraid, because I've got the digital version.

MR JUSTICE GOSS: That's all right. I'll find it quicker on paper. It's to do with my age. Yes, I've got it.

MR JOHNSON: "The cardinal rule of the law of evidence is that, subject to the exclusionary rules, all evidence which is sufficiently relevant to the facts in issue..."

And we would figuratively underline those words, "the facts in issue":

"... is admissible and all evidence which is irrelevant or insufficiently relevant to the facts in issue should be excluded."

Then paragraph F12:

"The meaning of relevance."

There's a reference there to what's referred to as the classic formation of concept in Article 1 of Stephen's Digest of the Law of Evidence, 12th edition, 1936, according to which the word signifies that:

"Any two facts to which it is applied are so related to each other that according to the common course of events one either taken by itself or in connection with other facts proves or renders probable the past, present or future existence nor non-existence of the other."

And then reference to something said by Lord Simon of Glaisdale in DPP v Kilbourne, which of course has the great advantage of having been a criminal case:

"Evidence is relevant if it is logically probative or disprobative of some matter which requires proof. I do not pause to analyse what is involved in 'logical probativeness' except to note that the term does not of itself express the element of experience, which is so significant of its operation in law and possibly elsewhere. It is sufficient to say, even at the risk of etymological tautology that relevant, ie logically probative or disprobative evidence, is evidence which makes the matter which requires proof more or less probable."

That's the problem here, my Lord: most of the material in Eirian Powell's statement does not go to the issues in the case. So we made this point orally to my learned friend. We have made the point that there are factual -- first of all, we question the relevance of most of this material. Secondly, if some of it, the "factual evidence" is admitted, it will necessarily require further evidence to be called to correct what on the face of it is or are mistakes. So simply to say that this isn't a surprise to the prosecution that we are interested in these issues

doesn't actually address the point here and the point is relevance.

So we invite the court, given that this is the defence's application to have the witness recalled, to in effect require the defence to set out in terms the material that is sought to be adduced from this prosecution witness.

MR JUSTICE GOSS: Right.

Submissions in reply by MR MYERS

MR MYERS: First of all, my Lord, a matter that I do correct, because it bears upon me, the suggestion that to some extent it's a figment of my understanding alone that this witness would be recalled --

MR JOHNSON: I haven't said it's a -- figment.

MR MYERS: To assist the court, so it's absolutely clear where we are on this, your Lordship will know that she has been required for this throughout and when Eirian Powell gave evidence on 14 December, and I refer to this in the submission I provided, at the conclusion of her evidence your Lordship thanked her for giving evidence -- it's page 115 of that transcript -- and your Lordship said:

"That completes your evidence. I don't think you're --"

And I said:

"Ms Powell may be required back."

Because that was my understanding (overspeaking) --

MR JUSTICE GOSS: We're beyond that, Mr Myers. I'm not in the least bit critical of you or anyone in relation to this and I'm not suggesting that anyone's been misled or has been trying to mislead or is doing anything. The point is we are where we are now --

MR MYERS: Yes.

MR JUSTICE GOSS: -- and I am just anxious to address this in the appropriate way and, to my mind, what has been -- as you will have seen, I prompted it and Mr Johnson has endorsed it, is that really what needs to be known is precisely what matters you wish to put to this witness.

I'm not going to ask you to do it now because what I'm going to suggest is you reduce these to writing. You've got the rest of

today or today to do it. It's not a matter we need to resolve today. I think things will become much more focused and clearer and easier to resolve when that has been done.

If I may say so, with respect to you, it'll help that you have then got your -- you know what it is you want to adduce, the prosecution will know what you want to adduce, I will know, therefore I can say, "This is not relevant, therefore not admissible", or, "Yes, this is relevant or potentially relevant, therefore it is admissible".

MR MYERS: Of course, we will assist as your Lordship wishes to and we'll do that.

MR JUSTICE GOSS: I think that will be best -- well, I'm directing that's what should happen.

MR MYERS: We shall. I should say this, of course: relevance -- two things, really.

Relevance, first of all, is not defined by what the prosecution wish to put before the witness.

MR JUSTICE GOSS: No, it's what I decide is relevant to the issues in the case.

MR MYERS: And that includes also those matters that are relevant to the defence case.

MR JUSTICE GOSS: Exactly.

MR MYERS: And it may well be there is material here the prosecution don't seek for their case, but that's only half of the picture and we identify that.

The other matter is a factual matter, just to put all minds at rest. With regard to that page with commonalities, we don't, nor have I indicated in setting this out to your Lordship, wish to go into the question of what commonalities were identified. It's very simple. It's the comment of Mel Taylor, "Yeah, she's nice", as opposed to what Dr Brearey was indicating were his views of Lucy Letby. It's a very simple point and it was put to him in evidence, in fact, that he had said of Mel Taylor, as opposed to Lucy Letby, "Yeah, she's nice", as a reason for focusing upon Lucy Letby. He had things to say about that. I put it to him that's the conversation with Eirian Powell.

It's significant to the defence and that's what we wish to put in. We don't propose to go into questions of commonalities and the analyses that were conducted.

Your Lordship will see, it's very limited the material we wish to go to but it is important to the defence.

MR JUSTICE GOSS: Let's do it that way. I think it will focus minds and it will certainly assist me.

MR MYERS: Very well, my Lord.

MR JUSTICE GOSS: The jury have already heard from another witness a reference to, "No, not nice Lucy".

MR MYERS: Yes, indeed. Dr Brearey said that's how he had described Ms Letby. That doesn't feature in what Ms Powell says about that conversation.

MR JUSTICE GOSS: All right.

MR MYERS: That's only one issue. It's the commonality point.

MR JUSTICE GOSS: Yes. We're a long way past that. All right. So that's what'll happen then. As I say, there's no pressure of time on you, Mr Myers, because, as we've already discussed, the reading of the interviews or the putting in evidence of the interviews is going to take 2 to 3 days in any event. I hope we will have Professor Arthurs tomorrow as well. We're going to be well into next week, so there's plenty of time.

MR JOHNSON: I'm sorry, I should have raised this. There is, to an extent, pressure of time in the sense that we have teed up the witness to be here tomorrow. She's on leave next week. There's leave and leave. She may just be off work and it may not be an inconvenience for her to --

MR JUSTICE GOSS: Mr Astbury is going to tell you.

MR ASTBURY: I have the advantage for once, and only once, of my learned friend. I've received an email while he's been on his feet. With the benefit of the time marking, Ms Powell can attend next week. 10.30 would be the obvious suggestion.

MR JUSTICE GOSS: "Leave" means not at work rather than absent the area, jurisdiction, or whatever. All right, good, that's helpful. Thank you very much. So that can be discussed and you can discuss between yourselves when it is --

MR MYERS: My Lord, yes.

MR JUSTICE GOSS: -- that is to be accommodated. So we'll do that and we'll obviously deal with the issue of what is admissible and what is not admissible before that.

Good, thank you very much indeed.

Are there any other matters with which we can deal now?

MR JOHNSON: I don't believe so.

MR MYERS: No, I don't believe so.

MR JUSTICE GOSS: I don't think there are. You would presumably like Ms Letby to be kept here?

MR MYERS: Certainly for the time being, my Lord.

MR JUSTICE GOSS: It's an early work morning.

MR MYERS: Yes, we need the time. We're grateful.

MR JUSTICE GOSS: All right. Thank you very much. I'm going to address the senior officer to whom I spoke earlier. If I could leave the eye appointment issue with you to make such enquiries as you can, I'd be very grateful indeed. Just let the court know by appropriate means as to what can and can't be done. Thank you very much indeed.

(11.23 am)

(The court adjourned until 10.30 am on Thursday, 20 April 2023)